

STATE OF NEW YORK

3954--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. RAGA, SEAWRIGHT, SIMONE, KASSAY, McDONALD, REYES, SHRESTHA, MITAYNES -- read once and referred to the Committee on Election Law -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the election law, in relation to enacting the "student voter empowerment act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "student voter empowerment act".

3 § 2. Subdivision 18 of section 5-211 of the election law, as amended
4 by chapter 481 of the laws of 2023, is amended and two new subdivisions
5 19 and 20 are added to read as follows:

6 18. (a) ~~[(i)]~~ On or before January first, two thousand twenty, all
7 institutions of the state university of New York and the city university
8 of New York shall create and make available to all students a webpage
9 for voter education on each such institution's website, containing a
10 link to an application for voter registration, a link to an application
11 for an early mail ballot, updated information about the location and
12 hours of the polling place designated for students registered to vote on
13 the contiguous property of the institution, if such polling place exists
14 pursuant to subdivision five-a of section 4-104 of this chapter or as
15 designated by the local board of election, key dates for voting regis-
16 tration, voting times, and absentee voting detailed in the state board
17 of elections political calendar, information about the voting rights of
18 students, contact information for the county board of elections, and the
19 name and contact information for the ~~[administrator responsible for~~
20 ~~voter registration assistance]~~ student voting coordinator on each
21 campus.

22 ~~[(ii)]~~ (b) Each such institution shall, at the beginning of the school
23 year, and again in January of a year in which the president of the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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United States is to be elected, provide an application for voter registration and an application for an early mail ballot to each student in each such institution. Each institution shall be considered in compliance with the requirements of this ~~[subparagraph]~~ paragraph for each student to whom the institution electronically transmits a message containing the link to the webpage for voter education, the link to an application for voter registration and the link to an application for an early mail ballot, if such information is in an electronic message devoted exclusively to voter registration.

~~[(iii)]~~ (c) Each such institution shall provide the same degree of assistance as required of participating agencies.

~~[(b) The state university of New York and the city university of New York, on behalf of each institution within its system, shall on or before June first, two thousand twenty, and each subsequent year, submit a report disaggregated according to each institution to the state board of elections that includes:~~

~~(i) the efforts of the institution to register voters in the preceding calendar year;~~

~~(ii) a date-stamped screen shot of the webpage for voter education that contains the required information under paragraph (a) of this subdivision;~~

~~(iii) the number of students who were registered for course work in the preceding twelve months at such institution and the number of clicks on the links to online voter registration and early mail ballot applications; and~~

~~(iv) any other efforts or recommendations the institution plans to implement to improve access to voter registration and early mail ballot voting for students at the institution.~~

~~(c) The state board of elections shall make the reports provided pursuant to paragraph (b) of this subdivision publicly available on its website.]~~

19. (a) On or before January first, two thousand twenty-six, all public and private higher education institutions in New York shall create and make available to all students a webpage for voter education on each such institution's website, containing a link to an application for voter registration, a link to an application for an early mail ballot, updated information about the location and hours of the polling place designated for students registered to vote on the contiguous property of the institution, if such polling place exists pursuant to subdivision five-a of section 4-104 of this chapter or as designated by the local board of election, key dates for voting registration, voting times, and absentee voting detailed in the state board of elections political calendar, information about the voting rights of students, contact information for the county board of elections, and the name and contact information for the student voting coordinator on each campus.

(b) Each such institution shall, at the beginning of the school year, and again in January of a year in which the president of the United States is to be elected, provide an application for voter registration and an application for an early mail ballot to each student in each such institution. Each institution shall be considered in compliance with the requirements of this paragraph for each student to whom the institution electronically transmits a message containing the link to the webpage for voter education, the link to the webpage for voter education, the link to an application for voter registration and the link to an application for an early mail ballot, if such information is in an electronic message devoted exclusively to voter registration. Each such institution

1 shall provide the same degree of assistance as required of participating
2 agencies.

3 (c) Each public and private higher education system on behalf of each
4 institution within its system, shall on or before June first, two thou-
5 sand twenty-six, and each subsequent year, submit a report disaggregated
6 according to each institution to the state board of elections that
7 includes:

8 (i) the efforts of the institution to register voters in the preceding
9 calendar year;

10 (ii) a date-stamped screen shot of the webpage for voter education
11 that contains the required information under paragraph (a) of this
12 subdivision;

13 (iii) the number of students who were registered for course work in
14 the preceding twelve months at such institution and the number of clicks
15 on the links to online voter registration and early mail ballot applica-
16 tions; and

17 (iv) any other efforts or recommendations the institution plans to
18 implement to improve access to voter registration and early mail ballot
19 voting for students at the institution.

20 (d) The state board of elections shall make the reports provided
21 pursuant to paragraph (c) of this subdivision publicly available on its
22 website.

23 20. (a) Each higher education institution within the state of New York
24 shall designate a staff member to act as a student voting coordinator.
25 The student voting coordinator shall develop and implement a student
26 voting action plan to increase student voter registration and voting and
27 democratic participation among students. Such student voting action
28 plan shall cover the two year period immediately preceding each state-
29 wide general election, provided however that the action plan following
30 the effective date of the chapter of the laws of two thousand twenty-
31 five that amended this subdivision shall cover the period after such
32 effective date, and shall be updated after each statewide general
33 election.

34 (b) The student voting action plan shall include:

35 (i) A minimum of three election outreach events to increase democratic
36 participation and student voting during an academic year, including at
37 least one event during the forty-five days preceding a general or prima-
38 ry election. At least one event shall be held in-person. Such events
39 shall be open for all students to attend, and may be sponsored by
40 student organizations, provided they maintain the requirements as speci-
41 fied in paragraph (c) of this subdivision.

42 (ii) Provision of informational materials on voting and voter regis-
43 tration, including but not limited to application and online application
44 for voter registration as required in subdivision eighteen of this
45 section, in central locations and high-traffic areas on campus, includ-
46 ing during orientation events for new students and during course regis-
47 tration processes, and in electronic messages, social media platforms,
48 and text messages to cellular phones, to the extent the institution uses
49 such methods to provide information to students.

50 (iii) In consultation with local boards of elections, provision of
51 pre-filled voter registration applications with relevant residential
52 addresses on the contiguous property of the college or university.

53 (iv) Dissemination of information about voter registration and voting
54 opportunities to all students on the website created pursuant to subdi-
55 vision eighteen of this section, including:

56 (A) the dates for early voting and election day voting;

1 (B) the last day for voter registration, enrollment, and change of
2 enrollment;

3 (C) the process to search for a voter's early voting and election day
4 assigned poll sites and voter registration status;

5 (D) the location and hours of the polling place designated for
6 students registered to vote at any address on the contiguous property of
7 the institution, pursuant to subdivision five-a of section 4-104 of this
8 chapter, if such polling place is designated;

9 (E) the process and deadlines for applying for and returning absentee
10 ballots, early mail ballots, and for curing defects in absentee ballots;

11 (F) the option to use students' campus residence address to register
12 to vote;

13 (G) the protections for the right to vote pursuant to title two of
14 article seventeen of this chapter, the John R. Lewis voting rights act
15 of New York, and the rights of voters with disabilities; and

16 (H) the assistance for language-minority groups as provided by section
17 17-208 of this chapter.

18 (v) Support of student organizations engaged in activities to increase
19 voter registration and voting by students, including but not limited to
20 professional assistance, dissemination of information of activities, or
21 financial support.

22 (vi) A policy allowing a student to be excused from class or absent
23 from a job with the institution for a reasonable period for the purpose
24 of voting on election day, if the student does not have three hours of
25 continuous time out of class or off from a job with the institution
26 during the time the polls are open on election day.

27 (vii) Any other activities to improve access to voting and voter
28 registration for students.

29 (c) The work of the student voting coordinator and the activities in
30 the student voting action plan, including but not limited to outreach
31 events, informational materials, and communications, shall not be
32 conducted for the purpose of favoring or disfavoring particular candi-
33 dates or political parties.

34 (d) The chancellor or president of each higher education institution
35 in the state of New York shall promulgate rules for the manner of devel-
36 oping the student voting action plan which shall include consultation
37 with staff, faculty members, and student organizations with experience
38 in civic engagement.

39 (e) On or before June first of each year, each public and private
40 higher education institution shall submit a report to the state board of
41 elections, in a form and manner prescribed by the board, detailing its
42 efforts to promote student voter registration and participation. The
43 state board of elections, in consultation with the state university of
44 New York and the city university of New York, shall establish uniform
45 standards for such reports. Each report shall be disaggregated by insti-
46 tution and shall include, but not be limited to:

47 (i) the efforts of the institution to promote voter access in the
48 preceding calendar year, including the student voting action plan devel-
49 oped and implemented pursuant to paragraph (b) of this subdivision;

50 (ii) a date-stamped screenshot of the webpage for voter education that
51 contains the information required pursuant to subdivision eighteen or
52 nineteen of this section, as applicable;

53 (iii) non-personally identifiable data on student registration and
54 participation, including the number of students registered for course-
55 work in the preceding twelve months and, to the extent practicable, the

1 number of clicks on links to online voter registration and early mail
2 ballot applications provided by the institution; and
3 (iv) any other efforts or recommendations the institution plans to
4 implement to improve access to voter registration and voting for its
5 students.

6 (f) The state board of elections shall make all reports provided
7 pursuant to paragraph (e) of this subdivision publicly available on its
8 website. The board shall also, not later than September first of each
9 year, prepare and publish on its website a summary report analyzing
10 statewide trends in student voter registration and participation based
11 on the data provided.

12 (g) To supplement the data collected and analysis performed by the
13 board, the state board of elections may coordinate with a qualified
14 academic or not-for-profit research institution, including but not
15 limited to those located outside the state, which conducts national
16 studies on student civic engagement and voter participation, to facili-
17 tate the collection, analysis, and public reporting of non-personally
18 identifiable data regarding student voting in the state.

19 § 3. Paragraph (a) of subdivision 1 of section 17-208 of the election
20 law, as added by chapter 226 of the laws of 2022, is amended to read as
21 follows:

22 (a) more than two percent, but in no instance fewer than three hundred
23 individuals, of the citizens of voting age of a political subdivision or
24 residents of a college or university are members of a single language-
25 minority group and are limited English proficient.

26 § 4. This act shall take effect one year after it shall have become a
27 law; provided, however, that if chapter 226 of the laws of 2022 shall
28 not have taken effect on or before such date then section three of this
29 act shall take effect on the same date and in the same manner as such
30 chapter of the laws of 2022 takes effect. Effective immediately, any
31 rules and regulations necessary to implement the provisions of this act
32 on its effective date are authorized to be made and completed on or
33 before such date.